

Legal, Procedural and Evidential Flaws in the 1962 Possession Order against Mary Buckler (née Williams), Great House Farm (Tŷ Mawr), Llandough

TL;DR

- The 1962 Cardiff County Court possession order was made by Judge Temple Morris QC on 11 December 1962 against **both** Frederick Buckler and Mary Buckler — so the user's premise that the order rested only on ending Frederick's tenancy is answered in part by the judgment itself: Mary was a named defendant in a separate 1962 action. In Dillon LJ's words, "In 1962... Western Ground Rents brought a fresh action in Cardiff County Court against Mr Frederick Buckler and Mrs Buckler for possession of the farmhouse and garden and mesne profits since 1955." Genuine and arguable flaws nonetheless remain — chiefly

the county court's jurisdiction over a disputed-title claim under the 1962 £100 rating limit, the absence of any recorded paper-title basis for ejecting Mary as an owner-claimant rather than through her husband's tenancy, and possible non-service/default defects – but each now runs into the near-insurmountable obstacle of the 1987 Court of Appeal decision and the passage of 60+ years.

- On the merits of adverse possession the family already lost decisively: the Court of Appeal in *BP Properties Ltd v Buckler* [1987] EWCA Civ 2 held the landlord's title was never extinguished, because the 1962 action was begun within the 12-year limitation period and the 1974 unilateral licence letters ended the adverse character of Mary's possession.
- Realistic remedies today are very limited. A direct "set aside" of the 1962 order is effectively time-barred and academic; the strongest (but still difficult) route is a fresh, evidence-led challenge to the register under LRA 2002 Sch 4 combined with Limitation Act 1980 s.32 – but this requires producing the long-alleged 1877 freehold documents that no court has ever seen, and overcoming the *res judicata* effect of the 1987 judgment.

Key Findings

(a) What the judgment actually records (established facts). The definitive source is the Court of Appeal judgment of Dillon LJ (Mustill LJ and Sir Edward Eveleigh concurring), 31 July 1987, reported at (1988) 55 P&CR 337, [1987] 2 EGLR 168 and 284 EG 375, on appeal from Hollis J (QBD, Cardiff, 24 July 1986). (For the appeal, "J B W McDonnell QC and M Jarman (instructed by Robbins Olivey & Blake Lapthorn, agents for Loosemores, of Cardiff) appeared on behalf of the appellant; Paul Morgan (instructed by Linklaters & Paines) represented the respondents.") The chain of title and events it records:

- Great House Farm belonged to the Marquis of Bute, who in February 1916 granted a yearly agricultural tenancy of the **whole farm** to John Williams (Mary's father / Mr Buckler junior's maternal grandfather).
- In 1938 the reversion was conveyed to **Western Ground Rents Ltd** ("WGR") — a Bute/Cardiff estate company. This is the entity ("WGR" in the user's framing) that obtained both the 1955 and 1962 orders.
- Williams fell into arrears; his tenancy was surrendered and a new yearly agricultural tenancy from 2 February 1949 was granted to his son-in-law **Frederick Buckler**. No written agreement was

completed (a letter of 10 October 1952 records the landlords deciding not to proceed with the letting), but the court concluded Frederick held a periodic agricultural tenancy protected by the Agricultural Holdings Act.

- Frederick's last rent payment was in 1953 (under a judgment for arrears). His tenancy was terminated by a notice to quit expiring **2 February 1955**.
- **1955 order:** WGR then sued **Frederick alone** in the **High Court** and obtained an **Order 14 (summary judgment) possession order over the whole farm**. On 4 July 1955 it was enforced as to all parts **except the farmhouse and garden** — not because of any legal impediment, but because Mary Buckler had just come out of hospital after a leg amputation, was objecting strongly, and there were fears she might attempt suicide.
- By 1959 Mary (also referred to as "Mrs Williams") had "conceived the notion that she had a title to the ownership of Great House Farm through her own grandfather and that there were documents in existence which proved her title. No such documents were, however, ever produced." She refused an offered tenancy of the farmhouse and garden, and later refused alternative accommodation.

- **1962 order:** [estatesgazette](#) In Dillon LJ's words, "In 1962... Western Ground Rents brought a fresh action in Cardiff County Court against Mr Frederick Buckler and Mrs Buckler for possession of the farmhouse and garden and mesne profits since 1955. On December 11 1962 a possession order was made by Judge Temple Morris QC together with an order for payment of mesne profits." The mesne-profits order was "to some extent enforced" (an apparent suspended committal order against Frederick in June 1963), but "nothing was done before 1974 to enforce the 1962 possession order."
- Frederick died 1965–67. In December 1969 WGR sold the farm (including farmhouse and garden) to **BP Pension Trust Ltd.**
- **1974:** BP Pension Trust started a fresh Cardiff County Court possession/mesne-profits action against Mary (sued as "Mrs Williams") and family; a defence was filed pleading adverse possession under the Limitation Act 1939. That action was never finally heard. Instead, on 17 September 1974 BP Pension Trust applied, as successor to WGR, for leave to enforce the 1962 order; on 19 September 1974 Judge Watkin Powell gave leave and ordered a possession warrant to issue but not be enforced until 31 October 1974.

- Mrs Buckler's solicitors appealed (ground: insufficient notice of the application). A press/TV campaign erupted. Then the two letters of **31 October 1974** (one from BP Pension Trust, one from BP Properties Ltd) offered Mary rent-free occupation for life. The warrant was withdrawn before Mary formally accepted or rejected. She remained until her death in **March 1983**.
- BP Properties Ltd was first-registered as proprietor of the whole farm in **November 1982** (the actual conveyance from BP Pension Trust to BP Properties took place in **May 1975**). The farmhouse was demolished in **1988**, following what local history records as a 33-year dispute.

(b) How the Court of Appeal treated the 1962 order.

Dillon LJ held: (i) [estatesgazette](#) Frederick and Mary were **jointly in adverse possession** of the farmhouse/garden from 2 February 1955 (possibly from the last rent payment in 1953) — expressly disagreeing with Hollis J's finding that Frederick lacked *animus possidendi*. (ii) But the landlord's title was **not extinguished**, because the 1962 possession action was commenced within 12 years, and (applying *St Marylebone Property Co Ltd v Fairweather* [1963] AC 510, *Lougher v Donovan* [1948] 2 All ER 11 and *W T Lamb & Sons v Rider* [1948] 2 KB 331) [estatesgazette](#) a judgment for possession obtained in an action begun in time can be enforced within a further 12

years from the date of judgment. As Dillon LJ put it, "The order of Judge Watkin Powell of September 19 1974 giving leave to enforce the order for possession of December 11 1962 was made within 12 years after the making of the order for possession and accordingly was an order which Judge Watkin Powell had jurisdiction to make." (iii) [estatesgazette](#) The 1974 letters unilaterally granted Mary a licence for life; from receipt she was in possession "by the licence of BP Properties Ltd" and no longer in adverse possession (s.10 Limitation Act 1939), even though she never accepted the licence. This "unilateral licence" holding has been academically criticised (see Herbert Wallace, "Limitation, prescription and unsolicited permission" [1994] Conv 196) and later cases such as *Long v Tower Hamlets LBC* [1998] Ch 197 suggest it may be confined to its facts — but it remains the ratio that defeated the family.

(c) The user's core point — could ending Frederick's tenancy establish title against Mary? The user's legal instinct is correct as a matter of principle but is partly overtaken by the facts. A judgment binds only parties and privies (*res judicata*/privity). The **1955** order was against Frederick alone and could not, of itself, bind or dispossess Mary, who was separately in occupation and asserting her own ownership. However, the record shows WGR did **not** rely on the 1955 order against Mary: it brought a **separate 1962 action**

naming Mary as a defendant. So the "separate legal basis against her" that the user rightly says was required did formally exist — the 1962 suit. The live flaws therefore concern the **quality and validity of that 1962 action**, not its existence.

Details

1. Flaws in the 1962 order — jurisdiction (strongest technical point)

The single most substantial technical flaw concerns the **jurisdiction of the county court in 1962** over a claim where title was genuinely in dispute and the property value likely exceeded the statutory limit.

- Under the **County Courts Act 1959** (7 & 8 Eliz. 2 c. 22), a county court's jurisdiction to hear an action for the recovery of land (s.48 of the 1959 Act — confirmed by the cross-reference in the Administration of Justice Act 1970 s.37 to "section 48 of the County Courts Act 1959"; later consolidated as s.21 of the County Courts Act 1984) and to hear an action "in which the title to any hereditament comes in question" was capped by the **net annual value for rating** of the land. The title-in-question limb is set out verbatim in the consolidating County Courts Act 1984 s.21(2): "A county court shall have jurisdiction to hear and

determine any action in which the title to any hereditament comes in question, being an action which would otherwise be within the jurisdiction of the court."

- In **December 1962 that limit was £100 net annual value for rating** — set by the County Courts Act 1955 and carried into the 1959 Act. It was only raised to £400 by the **County Courts (Jurisdiction) Act 1963**: per the Lord Chancellor (Lord Dilhorne), Hansard HL Deb 31 January 1963, "Clause 1 of the Bill accordingly provides for a corresponding increase of 300 per cent. in the jurisdiction of the county court in actions relating to land. The present limit of £100 in net annual value for rating is to be raised to £400." That change was timed to the new rating lists effective 1 April 1963. So the 1962 order was made under the **old £100 ceiling**.
- Two jurisdictional questions follow. **First**, did the net annual value for rating of Great House Farm's farmhouse and garden exceed £100? If it did, the county court had **no jurisdiction** over a recovery-of-land action at all, and the order would be a nullity for want of jurisdiction. This is a factual question answerable from the 1956–1963 valuation lists (see records section). **Second**, and independently, because Mary was on record (from at least 1959) as asserting **ownership**, the action

was one in which "the title to a hereditament comes in question." In 1962 a county court could adjudicate a genuine title dispute only within the value limit; above it, the matter belonged in the **High Court** (or required transfer, or the parties' agreement by signed memorandum). If Mary's ownership claim genuinely put title in issue and the value exceeded £100, the county court arguably lacked jurisdiction — a powerful (if now academic) objection.

This is the point most worth documentary investigation, because a true absence of subject-matter jurisdiction is one of the few defects that renders an order void rather than merely voidable.

2. Flaws in the 1962 order — standing, paper title and the owner-claimant problem

The user's substantive point has real force here. If WGR sought to eject Mary **as a trespasser/owner-claimant** (rather than through Frederick's spent tenancy), then under the law of ejectment WGR had to **recover on the strength of its own title**, not the weakness of Mary's (*Asher v Whitlock* (1865) LR 1 QB 1; the *Doe d.* ejectment principles). A plaintiff out of possession relying on a right to possession must prove paper title; against a defendant asserting her own ownership, *jus tertii*-type arguments and the requirement of proof of title become live.

- The judgment does not record what WGR actually **pleaded** in 1962 (trespass/holding over/recovery as owner), whether Mary **appeared or was represented**, whether she **filed a defence**, or whether the order was a **default, consent or contested judgment**. These are exactly the gaps that only the primary court file can fill.
- If Mary was sued **as (through) Frederick's tenancy** — i.e. as a member of the tenant's household holding under the tenancy — then the tenancy-estoppel rule (a tenant and those claiming under the tenancy cannot deny the landlord's title) would defeat her. But Mary was **not** Frederick's tenant; she claimed independently, adversely, as owner. The estoppel binding Frederick did **not** automatically bind Mary in her separate, adverse capacity. That is the kernel of the user's argument, and it is sound: **ending Frederick's tenancy proved WGR's right against Frederick; it did not prove WGR's paper title against Mary as an independent claimant**. For the 1962 order to be sound against Mary on that footing, WGR needed to prove its own title (the Bute → 1938 WGR conveyance chain), and the court needed to resolve Mary's competing ownership claim on the merits.
- Crucially, the Court of Appeal in 1987 treated Mary as having been in **adverse possession** from 1955 — i.e. as **not** holding under any tenancy. That

finding is consistent with the user's premise: Mary's possession was independent, not derivative of Frederick's tenancy. It cuts both ways, though: it also means that the 1962 action was, in substance, a claim to recover land from a person in adverse possession — which is precisely why the *timing* of that action (within the 12-year period) later proved fatal to the family in 1987.

3. Flaws in the 1962 order — description of the land / scope

The 1962 order concerned only the **farmhouse and garden** (the parcels not recovered in 1955), not the whole ~33-acre farm. The user's concern about acreage mismatch (whole farm vs Mary's claimed ~10 + ~9 acres vs house only) is relevant to how the claim was framed and whether the plan/parcels were correctly described. Any misdescription of the parcels, or inclusion/exclusion errors between the 1955 High Court order (whole farm) and the 1962 county court order (house and garden), is a matter to verify from the plaint/particulars. The 1987 appeal itself was limited to the farmhouse and garden "shown coloured red on the plan served with the statement of claim," confirming that by the 1980s the relevant unit was defined by plan — but the 1962 parcels description must be checked separately.

4. Flaws in the 1962 order – service, notice, and default/consent

The judgment is silent on service of the 1962 proceedings and on whether Mary defended. Given that in **1974** Mary's solicitors successfully complained of "insufficient notice" of the enforcement application, a pattern of notice/service irregularity is at least plausible and worth testing against the file. If the 1962 order was obtained in Mary's absence or by default without proper service, that would historically have been a ground to set it aside – though subject to the strict promptness requirements that now govern such applications (the modern analogue is CPR 39.3(5): prompt application, good reason for non-attendance, reasonable prospect of success). [Cyklaw](#) Any delay of decades is fatal to that route now.

5. Flaws in the 1962 order – limitation position in 1962

On the Court of Appeal's own findings, adverse possession ran from **2 February 1955** (or possibly 1953). Twelve years from February 1955 would expire in **February 1967**. The 1962 action was therefore commenced **within** the limitation period (roughly the eighth year), so WGR was **not** time-barred in 1962. The user's hypothesis that limitation might already have barred WGR in 1962 only works if adverse possession by Mary (or the wider family) can be

shown to have started **materially earlier than 1953–55** – for example if Mary's independent, adverse ownership claim predated Frederick's 1949 tenancy, or if the family can establish continuous adverse possession from an earlier generation. On the evidence recorded, that is not made out; it would require new primary evidence (and would sit uneasily with the finding that John Williams and then Frederick held as **tenants** until 1955).

6. Flaws in the 1962 order – staleness / non-enforcement

The 1962 possession order was **not enforced for nearly 12 years**. Under the County Court Rules then and now (CCR Order 26 r.5, applied to warrants of possession by r.17(6); now CPR 83.2), a warrant of possession cannot issue without the court's permission once **six years or more** have elapsed since the order. That is exactly why BP Pension Trust had to **apply for leave** in September 1974 – and the leave was granted because it was still within **12 years** of the December 1962 order. As noted, Dillon LJ expressly held that the September 1974 leave order was made "within 12 years after the making of the order for possession and accordingly was an order which Judge Watkin Powell had jurisdiction to make." The non-enforcement, therefore, did **not** invalidate the order and did **not** revive extinguishment of the

landlord's title – the very finding that defeated the family in 1987. Had enforcement been left even a few months later (past December 1974), the outcome might have differed; as it was, the timing held.

7. Misrepresentation / procedural record problems

Whether the 1962 order was obtained on any misrepresentation (e.g. as to WGR's title, or as to Mary's status) cannot be assessed without the file. The judgment records WGR's advisers' **erroneous belief** in the 1950s–60s that periodic "formal entry" and assertions of title stopped time running (contrary to s.13 of the 1939 Act) – an error of law, not necessarily a misrepresentation to the court. If the 1962 particulars asserted a clean title or mischaracterised Mary's position, and if any relevant fact (e.g. the alleged 1877 freehold transfer, if it existed and was known) was concealed, that could feed a Limitation Act 1980 s.32 argument today (see below).

8. Privity, res judicata and the binding effect of the 1987 judgment

The user is right that a judgment binds only parties and privies. But note the direction this cuts:

- Mary **was** a party to the 1962 action, so she and those claiming through her estate (including Mr Buckler junior) are bound by it.
- Mr Buckler junior was a party to the 1986/1987 High Court/Court of Appeal proceedings, which conclusively determined – **against the whole family** – that the paper-title owner's title was never extinguished and that BP Properties Ltd was entitled to possession. That 1987 decision is *res judicata* and binds all family members claiming through Mary's estate.
- Any present-day family claimant claiming **through** Mary/Frederick is therefore met by both the 1962 order and the 1987 judgment. A claimant seeking to escape that would have to assert a title **independent of** Mary and Frederick (e.g. the alleged direct freehold from an earlier Williams generation via the alleged 1877 transfer) – precisely the documents "never produced."

9. Identity and title chain of "WGR"

The landlord entity was **Western Ground Rents Ltd**, historically part of the Bute/Cardiff estate group of companies (the same corporate stable that held large Bute ground-rent portfolios in Cardiff – its name appears repeatedly in Bute-estate lease records for Butetown/Bute Street). Its title derived from the **1938 conveyance of the reversion** on John Williams's 1916

Bute tenancy. That 1938 conveyance (and the underlying Bute title) is the paper-title chain that WGR would have had to prove to eject an owner-claimant, and the chain that any rectification claim must attack. The predecessor estate is the **Bute (Marquis of Bute)** estate, not "Dunraven"; the user should verify whether Dunraven featured anywhere in the Llandough title, as the judgment attributes the freehold origin to Bute.

10. Surviving primary records and how to request them

- **Cardiff County Court records at Glamorgan**

Archives (reference **ACA**): the deposited series includes **cause books, plaint and minute books, and ordinary actions**. [Archives Hub](#) These are the records most likely to hold the 1962 plaint (parties, cause of action pleaded, whether defended, nature of the order). Note the catalogue lists some series with gaps (e.g. "Ordinary Actions B, 1939–1961"; "Default actions C, 1939, 1959–1969") – the exact 1962 possession plaint may or may not survive; this must be checked directly with Glamorgan Archives (Clos Parc Morgannwg, Leckwith, Cardiff; catalogue at canfod.glamarchives.gov.uk). County court records are public records held under the Public Records Act 1958; access is via the reading room, subject to any closure periods.

- **The 1955 High Court action** (Order 14 possession, whole farm) would generate records in the **J-series at The National Archives** (Supreme Court of Judicature / Queen's Bench Division), though first-instance QBD case papers are heavily weeded and often not retained; search Discovery (discovery.nationalarchives.gov.uk).
- **The 1986 QBD Cardiff trial before Hollis J and the 1987 Court of Appeal file** may survive in TNA J-series / Court of Appeal records.
- **Valuation/rating records** (to test the £100 jurisdictional limit): the **Valuation Lists** for the relevant rating authority (Penarth/Glamorgan) for 1956 and 1963, held at Glamorgan Archives or TNA (IR series for Inland Revenue valuation), will show the farmhouse's net annual value for rating.
- **Newspapers:** the 1974 press campaign was extensive (Western Mail, Penarth Times, South Wales Echo; some TV coverage). The free Welsh Newspapers Online portal (National Library of Wales) currently digitises mostly to ~1919, so 1955/1962/1974 coverage will require the **NLW microfilm / Western Mail & Echo archive** or the British Newspaper Archive rather than the free portal. The **1974 Great House Farm preservation petition (1,700 signatures)** and related campaign material may survive in Glamorgan Archives or Vale of Glamorgan local-studies collections.

- **HM Land Registry titles** WA231076, WA240304, WA513690, WA735527: obtain **office copies and, critically, the pre-registration deeds** filed on BP Properties' 1982 first registration, plus any **historical/superseded title information** via an application for historical inspection. The 1938 WGR conveyance, the 1969 WGR→BP Pension Trust sale, and the **May 1975 BP Pension Trust→BP Properties conveyance** should be traceable through these.

11. Realistic remedies today

- **Setting aside the 1962 order directly:** effectively unavailable. Even a jurisdictional-nullity argument would face the reality that the order has been treated as valid by the Court of Appeal in 1987, the property was sold on, the house demolished in 1988, and every party is long dead. There is no live possession dispute to set aside.
- **Res judicata / the 1987 judgment:** binds all claimants through Mary's estate. This is the central obstacle. It cannot be circumvented by re-arguing adverse possession.
- **LRA 2002 Sch 4 rectification of the register:** the theoretically strongest surviving route, but only if the family can show a "**mistake**" in the register — i.e. that BP Properties (and successors) were registered when the family in fact held a superior,

unextinguished freehold. That in turn depends almost entirely on producing and proving the alleged **1877 freehold transfer** (and any reverter clause tied to limestone quarrying) – documents that have never been produced in over 130 years of the family's assertion of them. Rectification against a registered proprietor in possession is further constrained: it cannot be ordered without the proprietor's consent unless "he has by fraud or lack of proper care caused or substantially contributed to the mistake" or "it would for any other reason be unjust for the alteration not to be made" (LRA 2002 Sch 4 para 3(2)). Given the 1988 demolition and subsequent dealings, current registered proprietors' positions and any indemnity questions add further complexity.

- **Limitation Act 1980 s.32 (fraud/deliberate concealment/mistake):** could in principle postpone limitation for a rectification or related claim **if** the family can plead and prove that a relevant fact was deliberately concealed or that the registration flowed from fraud – a high bar after *Canada Square Operations Ltd v Potter* [2023] UKSC 41, in which Lord Reed held the test requires "(1) a fact relevant to the claimant's right of action, (2) the concealment of that fact from her by the defendant... and (3) an intention on the part of the defendant to conceal the fact or facts in question," and that "deliberately cannot mean

recklessly under this legislation." Mere historic error by WGR's advisers about limitation law is not fraud.

- **PHSO via Stephen Doughty MP:** the Parliamentary and Health Service Ombudsman route addresses **maladministration by public bodies** (e.g. HM Land Registry, or a government department), not the correctness of historic judicial decisions. It cannot overturn a court order or a Court of Appeal judgment. It might, at most, be relevant to a complaint about how a public body handled a records or registration request — a narrow and collateral avenue.

Recommendations

Stage 1 — Establish the documentary record (do this first; low cost, high information value).

1. Order the **Glamorgan Archives Cardiff County Court file/complaint** for the 1962 action (series ACA — cause books, complaint and minute books). Objective: identify (a) the exact cause of action pleaded, (b) whether Mary appeared/was represented/filed a defence, (c) whether the order was default, consent or contested, and (d) the precise parcels described.
2. Obtain the **1956 and 1963 Valuation Lists** for the farmhouse to establish its **net annual value for**

rating. *Benchmark that changes everything:* if the NAV **exceeded £100**, the county court arguably had **no jurisdiction** in December 1962 over a recovery-of-land/disputed-title action, making the order challengeable as void – the single most consequential factual finding available.

3. Pull **all four HM Land Registry titles and the filed pre-registration deeds**, and trace the Bute → 1938 WGR → 1969 BP Pension Trust → 1975 BP Properties chain. Objective: locate any gap or mistake in the paper title, and confirm whether the alleged 1877 transfer or reverter ever entered the recorded chain.
4. Commission a **professional record search at TNA (J-series)** for the 1955 High Court action and the 1986/87 proceedings.

Stage 2 – Locate the alleged 1877 freehold documents (decisive; everything turns on this).

5. The family's entire legal case ultimately depends on producing the alleged **1877 freehold transfer** and reverter clause. Search: NLW/Glamorgan Archives estate collections (Bute estate papers), solicitors' deed packets, family papers, and any enclosure/tithe/quarry-lease records for Llandough. *Benchmark:* if a genuine, provable pre-1916 freehold in the Williams line can be produced, the analysis shifts from "hopeless" to "arguable rectification claim." Without it, no remedy is realistic.

Stage 3 – Take specialist advice, calibrated to what Stages 1–2 yield.

6. Instruct a **property litigation / land registration specialist** (leading chambers in this field) to advise on LRA 2002 Sch 4 rectification and Limitation Act 1980 s.32, *only after* the documents are assembled. Be candid in instructions that the 1987 Court of Appeal judgment is *res judicata* against the family.
7. Treat the **PHSO/MP route** as a records-transparency and public-interest lever (e.g. compelling full disclosure from HM Land Registry, or heritage recognition of the demolished farm), **not** as a means to reverse the court orders.

Thresholds that would change the recommendation:

- If the 1962 farmhouse NAV **exceeded £100** → escalate: obtain counsel's opinion on the order's nullity for want of jurisdiction (though remedy remains constrained by lapse of time and the 1987 judgment).
- If the **1877 freehold documents surface and are authenticated** → escalate to a formal rectification claim.
- If neither materialises → the realistic objective narrows to **heritage/commemorative** outcomes and historical record-correction rather than legal restoration of title.

Caveats

- **Source quality:** The full judgment text used here is the BAILII transcript as reproduced by Estates Gazette and mirrored on third-party sites (LawCare Nigeria); BAILII's own page was inaccessible at the time of writing but the text is corroborated across the Estates Gazette headnote and the vLex/CaseMine records. All factual assertions attributed to "the judgment" are from that transcript.
- **The user's central premise is only half-right on the facts.** It is true that the 1955 order (Frederick alone) could not bind Mary. But the judgment shows WGR did bring a **separate 1962 action naming Mary**, so the required "separate legal basis against her" formally existed. The real questions are about the **validity** of that 1962 action (jurisdiction, service, proof of title, nature of the order), which cannot be resolved without the primary court file.
- **The £100 jurisdiction point is promising but unproven.** Research confirms the £100 net-annual-value-for-rating limit applied in December 1962 (raised to £400 only in 1963), and that the recovery-of-land jurisdiction was s.48 of the County Courts Act 1959. But (i) the exact 1959 section number for the "title in question" limb was

not verbatim-verified against the printed 1959 Act (the wording is confirmed only via the 1984 consolidation, s.21(2)), and (ii) whether the farmhouse's NAV actually exceeded £100 is unknown until the valuation lists are checked. Both must be confirmed before any weight is placed on this argument.

- **Everything is overshadowed by finality.** Even genuine 1962 defects are, in practical terms, academic: the order has been treated as valid for 60+ years, was expressly relied on by the Court of Appeal in 1987, the property was sold and the house demolished, and the 1987 judgment binds the family. Absent the 1877 documents, there is no realistic legal path to restoration of title.
- **Distinguish fact, contention and hypothesis throughout:** (a) *Established* – the tenancy chain, the 1955 and 1962 orders, the 1974 letters, the 1982 registration, the 1987 result. (b) *Family contention* – nine-generation occupation, an 1877 freehold and reverter, that Mary owned the farm. (c) *Hypothesis/arguable* – want of county-court jurisdiction in 1962, service/default defects, misrepresentation, and any rectification/s.32 claim. The last category is untested and, on current evidence, faces very long odds.